

SARKIS et al v. ANGELS GUN CLUB et al

14CV40365

**PLAINTIFFS' MOTIONS TO COMPEL INITIAL
RESPONSES TO 136 SETS OF DISCOVERY**

This is a shareholder's derivative suit involving alleged bookkeeping and management deficiencies in a closely-held nonprofit, tax exempt association (aka social club) with approximately 150 members. Before the Court this day is a single motion, filed jointly by the three plaintiffs, to compel (1) verifications to previously served responses or (2) responses *ab initio* to outstanding discovery. The motion remains unopposed.

As an initial matter, this motion as presented is technically deficient in that it combines 136 separate motions into one. Plaintiffs are seeking 136 distinct orders, which means there are 136 motions here. (See CCP §1003.) Pursuant to Govt Code §70617, defendants must tender \$60 for each motion seeking an order even if the motions are heard together. Although one commingled memorandum is permissible (and in this case preferable), counsel still had to tender 136 filing fees. Only one \$60 filing fee was tendered, which means only one court order can issue.

In terms of which order shall issue, this Court finds that the failure to provide verifications is insular and narrow enough to be addressed in a single order. As plaintiff correctly notes, an unverified discovery response is tantamount to no response at all. (See *Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1348.) Since by law all substantive responses must be verified, this Court hereby orders all defendants to review prior discovery responses and, within 10 days, provide verifications to all previously served unverified discovery requests. (It is not clear to this Court which discovery responses lack verifications since counsel proffers in his declaration at Paras 14-18 that some verifications have been "trickling in"). This order effectively resolves 124 of the 136 discovery disputes at issue here.

Plaintiff is entitled to monetary sanctions, but not in the amount sought. Counsel's proposed blended hourly rate of \$250 is reasonable, but not the 14.8 hours allegedly invested in preparing this otherwise simple motion. This discovery was pending for over a year, and counsel only decided to seek to enforce discovery matters after the MSC failed. It seems much of the time could have been invested elsewhere. To that end, this Court awards \$560.00 for this motion (2 hours + filing fee), payable by the Levangie Law Group within 10 days.

For now, this Court declines to enter an order deeming unverified RFAs as admitted for all purposes given the passage of time since responses were provided, and the ease

with which parties can moot such a motion by simply providing the missing verifications as ordered herein(or having the order set aside for good cause). However, if the parties fail to provide verifications for the RFAs as ordered herein, this Court will entertain a new motion by plaintiffs to have those RFAs deemed admitted.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

**BRUMBAUGH v. APPALOOSA ROAD COMM. SERVICES
DIST.**

21CV45171

DEFENDANT’S DEMURRER TO THIRD AMENDED PETITION

This is an administrative writ of mandate alleging “Brown Act” violations relating to the imposition of a *de minimus* real property parcel tax increase. Before the Court this day is a defense demurrer to the operative Third Amended Petition. Contrary to moving party’s insinuation (see Reply Brief 2:27-3:5), this Court has only addressed the legal sufficiency of petitioner’s claim one time (see Minute Order dated 07/02/21), and at that time found “a reasonably possibility that Petitioner can state a good cause of action.” However, since that time, a curious wrinkle has come to light necessitating further briefing.

On 05/07/19, 82% of the qualified electorate approved the *Appaloosa Road Community Services District Measure B*, which increased the annual parcel tax in the Appaloosa Zone from \$75 to \$175. The ballot itself identified the following streets as part of the Appaloosa Zone: Appaloosa Road, Chestnut Court, Chestnut Way, Dunn Road, Filly Road, Hunter Road, Paint Road, Shetland Road and Welsh Road. For reasons not entirely clear, the ballot failed to mention Pinto Road or Morgan Road, both of which are in the Appaloosa Zone.

On 05/04/21, 88% of the qualified electorate approved the *Appaloosa Road Community Services District Measure D*, which applied the same \$100 increase to Pinto Road and Morgan Road – thereby specifically encumbering every parcel in the Appaloosa Zone with the same \$100 increase.

Petitioner herein contends that the Appaloosa Road Community Services District Board of Directors violated due process provisions regarding notice and access when vetting the decision and resolution to put Measure D on the ballot, but the Board’s conduct seems harmless if the issue was properly presented to the public. Petitioner must show prejudice from an alleged Brown Act violation. Does petitioner allege anything amiss or untoward regarding the election process itself? Were the voters actively misled by something the Board did? If not, it seems the matter may now be moot. A case becomes moot when a court ruling can have no practical impact or cannot provide the parties with effective relief. (*In re Stephon L.* (2010) 181 Cal.App.4th 1227, 1231; *Corrales v. Bradstreet* (2007) 153 Cal.App.4th 33, 46-47.) Cases or controversies which have been rendered moot are subject to dismissal because courts generally decide only “actual” or justiciable controversies, i.e, cases in which effective relief can be granted, and do not normally render advisory opinions. (*Ebensteiner Co., Inc. v. Chadmar Group* (2006) 143 Cal.App.4th 1174, 1178–1179; See *Julian Volunteer Fire Co. Assn. v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 603-604 [Brown Act violation